

Kamal Kant Dixit v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 September 2013 · WRIT - C No. 47808 of 2013 · **Writ dismissed; relegated to clause 6.5 complaint.**

HEADNOTE

A consumer who challenged an electricity bill, a recovery letter to the Collector, and a later demand notice after disconnection was relegated to a complaint under para 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench held that a billing grievance is to be raised before the concerned Executive Engineer under clause 6.5, dismissed the writ on the ground of alternative remedy, and directed that any such complaint be disposed of expeditiously.

FACTUAL SUMMARY

Kamal Kant Dixit sought quashing of the Executive Engineer's letter dated 25 August 2012 to the Collector for recovery of Rs 2 lakh and a demand notice dated 24 April 2013 for a further Rs 1,58,739. Supply had already been disconnected on 30 April 2013. He contended that the bill dated 31 December 2012 was incorrect. The State and the distribution licensee appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A consumer's grievance against an electricity bill and consequent recovery or demand is to be raised as a complaint under para 6.5 of the Electricity Supply Code, 2005 before the concerned Executive Engineer; the writ is dismissed as not maintainable in view of that alternative remedy, with a direction that any such complaint be disposed of expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 31 DECEMBER 2012 BILL AND OF THE 25 AUGUST 2012 RECOVERY LETTER AND 24 APRIL 2013 DEMAND

Left to a clause 6.5 complaint before the Executive Engineer. ¶ 1